

26STCV14281 26STCV14281

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-27

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Case Number: 26STCV14281 Hearing Date: August 27, 2026 Dept: 617

Dept.

617

Date:

8-27-26

Case

#: 26STCV14281

Trial

Date: 9-14-26

LEAVE TO AMEND

MOVING

PARTY: Defendant, Maris Murillo

RESPONDING

PARTY: Plaintiff, Rohs Properties, LLC

RELIEF

REQUESTED

Motion

for Leave to Amend Answer

SUMMARY

OF ACTION

On

May 5, 2026, Plaintiff Rohs Properties, LLC filed an unlawful detainer complaint against Defendants Humberto Lule and Maris Murillo. Murillo filed an answer on May 19, 2026 and an amended answer on May 29, 2026. Default was entered against Lule on June 9, 2026.

RULING: Granted.

Murillo

moves for leave to file a Second Amended Answer adding additional defenses not raised in her First Amended Answer, filed in pro per. The basis for the amendment is the subsequent retainment of counsel which revealed the necessity of asserting the defenses. Plaintiff opposes the motion, arguing that amendment prejudices it. Murillo's motion is granted.

A

motion for leave to amend must comply with the requirements set forth in California Rules of Court, rule 3.1324, which states as follows:

(a) Contents of motion

A

motion to amend a pleading before trial must:

(1)

Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2)

State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3)

State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A

separate declaration must accompany the motion and must specify:

(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended allegations were discovered; and

(4)

The reasons why the request for amendment was not made

earlier.

Dilatory delays and prejudice to the opposing parties is a

valid ground for denial. (*Hirsa v.*

Superior Court (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the

amendment would require delaying the trial, resulting in loss of critical

evidence, or added costs of preparation such as an increased burden of

discovery. (*Magpali v. Farmers Group,*

Inc. (1996) 48 Cal.App.4th 471, 486-88.)

Leave

to amend is generally liberally granted. (Code Civ. Proc., § 473, subd. (a); *Mesler v. Bragg Management Co.* (1985) 39

Cal.3d 290, 296.) The Court will not generally consider the validity of the

proposed amended pleading in ruling on a motion for leave, instead deferring

such determinations for a demurrer or motion to strike, unless the proposed

amendment fails to state a valid claim as a matter of law. (*Kittredge*

Sports Co. v. Superior Court (1989) 213 Cal. App.3d 1045, 1048; *California Casualty Gen. Ins. Co. v.*

Superior Court (1985) 173 Cal.App.3d 274, 280-81 disapproved of on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23

Cal.4th 390.)

Murillo

is granted leave to amend. The proposed defenses are within the limited scope

and summary character of unlawful detainer actions. (See *Vella v. Hudgins* (1977) 20 Cal.3d 251, 255.) Plaintiff

claims that it will be prejudiced by amendment due to increased expense and the “risk that potential discovery on these new claims will delay trial even further.” [Opp. at p. 4.] But Plaintiff does not explain what additional discovery will be needed and why it cannot be completed before the 5-day cut-off. (Code Civ. Proc., § 2024.040, subd. (b)(1).) In light of the absence of articulated prejudice to Plaintiff, Murillo’s motion is granted.

Murillo to file a separate copy of the Second Amended Answer within 3 days of the order.

September 14, 2026 trial date to stand.

Murillo to give notice.